# Los Angeles Times

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MANU FERNANDEZ Associated Press

**RAIL DISASTER IN SPAIN**

A high-speed train slammed into another in the central province of Toledo, killing at least 68. **WORLD, A3**

# Billionaire tax, voter ID losing support in poll

A majority opposes Props. 40 and 39. Prop. 3, which extends a levy, is popular.

BY SEEMA MEHTA

California voters are souring on a Nov. 3 ballot measure to impose a one-time tax on billionaires to help fund healthcare programs, a proposal that has triggered one of the most expensive political battles in state history.

Half of likely voters plan to vote against Proposition 40, the proposed wealth tax on billionaires' assets, while 42% support it, according to a new poll by UC Berkeley's Institute of Governmental Studies that was co-sponsored by The Times. The findings mark a significant decline in support of the measure, which was crafted by an influential California healthcare union to compensate for an estimated $100 billion in federal healthcare cuts approved by President Trump and congressional Republicans.

The survey also found that a solid majority of likely voters opposed Proposition 39, which would require Californians to provide identification when voting and election officials to verify registered voters are U.S. citizens. The findings come as the Trump administration continues to attack California as a haven for voter fraud, including unfounded allegations of rampant illegal voting by undocumented immigrants.

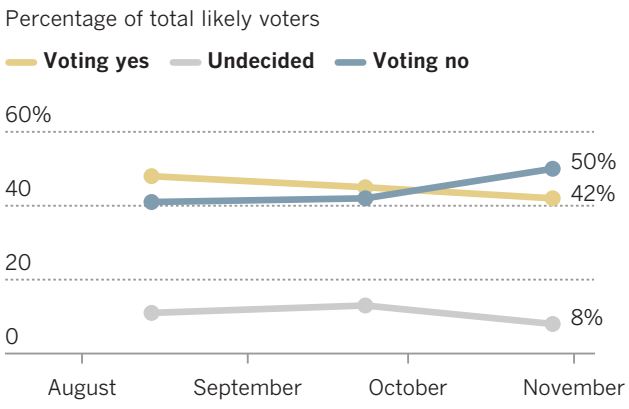
Mark DiCamillo, the poll's director, said previous surveys showed support for Proposition 40 has been fragile, and the most recent shows its prospects have dimmed as election day approaches.

The increase in opposition to Proposition 40 is "broad-based and spans virtually all major segments of the electorate," DiCamillio said. The ballot measure was leading in a Berkeley poll conducted just six weeks ago, albeit by a slim

[See **Poll,** A14]

## Proposition 40 trends downward

Support of state's voters for billionaire tax is declining.




Likely voters in the late-October poll include those who had already voted.Those who already voted and left the measure blank are counted as undecided.

Berkeley Institute of Governmental Studies survey of 1,477 likely voters was conducted online Oct. 19 - 25. Responses have a sampling error of about +/- 3 percentage points at the 95% confidence level. Prior polls sampled 4,512 likely voters in September and 2,310 in August.

HANNA SENDER Los Angeles Times

# ESSAYLI IS FOUND TO BE SERVING ILLEGALLY

Judge says he can't be L.A.'s 'de facto' U.S. attorney, but delays disqualification.

BY BRITTNY MEJIA

A federal judge has ruled that Bill Essayli is unlawfully serving as Los Angeles' top federal prosecutor and ordered him disqualified from overseeing two criminal cases, rejecting the Justice Department's latest effort to preserve his authority.

Senior U.S. District Judge J. Michael Seabright, however, delayed the disqualifications from taking effect while he considers an anticipated government request for a stay pending appeal.

The dispute is part of a nationwide battle over the Trump administration's efforts to install its chosen prosecutors without Senate confirmation. Alina Habba stepped down as New Jersey's top federal prosecutor in December after an appeals court found her appointment unlawful. In Virginia, a judge's finding that Lindsey Halligan was unlawfully appointed led to the dismissal of indictments against former FBI Director James Comey and New York Atty. Gen. Letitia James.

Although Seabright's order applies to two prosecutions, he rejected the legal arrangement that has allowed Essayli to continue leading the office under the title of first assistant U.S. attorney. He concluded that the Justice Department had unlawfully delegated powers so sweeping that Essayli in effect occupied the U.S. attorney's position.

"In sum, Essayli is unlawfully serving as a 'de facto' United States Attorney," Seabright wrote.

[See **Essayli,** A11]

DOLORES HUERTA, 1930 – 2026

# Workers' champion and feminist icon

BY JAMES RAINEY

Dolores Huerta, the fiery and resolute activist who helped launch and guide the nation's first enduring labor union for poor farmworkers and later became an inspiration to women and liberal true believers, has died. She was 96.

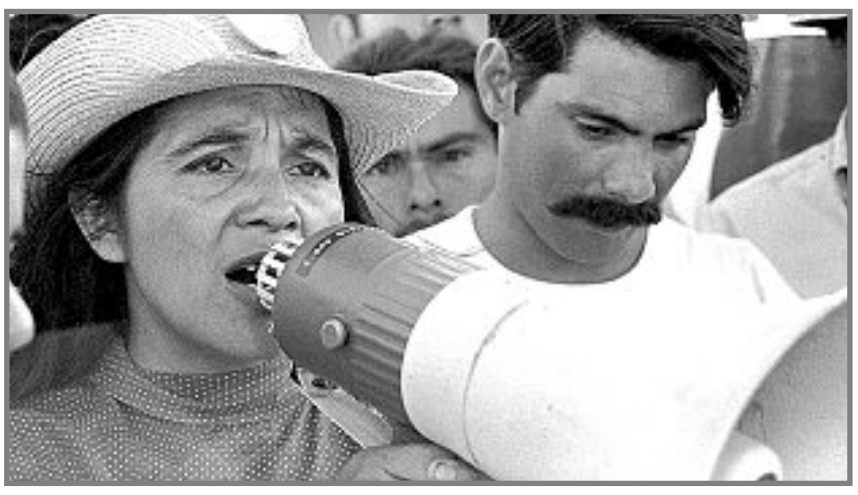
Erik Olvera, a family spokesperson, told The Times that Huerta died in Bakersfield on Wednesday, surrounded by members of her "huge family." The cause, he said, was cancer.

"It's a tough time," Olvera said. "She was incredibly beloved, and not only was she beloved, but she was an icon to so many people around the country and around the world, really. If anything, her family is clinging to memories and clinging to each other as they mourn."

Huerta never gave up on her dream of a more equitable distribution of wealth in America, campaigning for working people for years beyond standard retirement age.

The emotional compass of the United Farm Workers of America for decades, the petite mother of 14 attained singular stature as a rule-breaking proto-feminist, godmother of the Chicano power movement and doyenne of American

[See **Huerta,** A6]



GEORGE BALLIS Image Works

**UFW PIONEER**

Huerta, who co-founded the United Farm Workers of America with César Chávez, leads a march in the Coachella Valley in 1969.

# Trump's rosy, off-script riffs

Rallying in red states, he paints a portrait of prosperity that voters may not recognize.

BY ANA CEBALLOS

WASHINGTON — In the final days before an election that will decide control of Congress, President Trump's closing argument — buoyant, digressive and characteristically off-script — is at times running headlong into the economic anxieties of the voters Republicans most need.

With a war in Iran driving up gas prices for Americans, Trump is boasting to supporters that the conflict is making the country rich. At a rally in Georgia, he said his aides had urged him not to brag about the billions of dollars the United States was earning on oil from the war, since Americans are "paying a little higher" in costs because of it. But he did it anyway.

"I said, I don't give a damn," Trump said. "We are making a freaking fortune. Our country is getting stronger and stronger all the time. And those pump prices are going to come down."

The moment underscores the gamble at the core of Trump's final pitch to voters. With polls showing

[See **Rallies,** A7]

# Younger voters favoring Raman

The council member is an advocate for affordable housing, a top concern in L.A.

BY MELISSA GOMEZ

Three high school girls all dressed in pink strut up to the outcast in red flannel and tell her what it takes to be popular. But this isn't a clip from "Mean Girls" — it's a campaign video for Los Angeles mayoral candidate Nithya Raman.

The outcast, reminiscent of Lindsay Lohan's character in the 2004 film, explains how she doesn't mind being a nonconformist — and then compares herself to Raman and the council member's opposition to raises for Los Angeles Police Department officers.

"I have no problem saying no to systems that don't serve the people," the girl in flannel says. "Like Nithya Raman."

The micro-drama ad, which has racked up more than 200,000 views on social media, is one way Raman is targeting younger voters in her bid to unseat Mayor Karen Bass in Tuesday's election. Another ad, featuring a young couple pleased with improved public transit under a Raman administration, has 400,000 views.

There's a logic to the campaign's focus on younger voters. Raman, 45, is supported by 69% of likely voters between ages 18 and 29, compared with 15% for the 73-year-old Bass, according to the latest Berkeley IGS/Los Angeles Times poll.

Among voters ages 30 to 39, the gap is even wider: 74% for Raman compared with 16% for Bass, the poll found.

Part of Raman's appeal to younger voters is likely her advocacy for affordable housing and renter protections. Building more affordable housing is a top priority among younger voters surveyed in the September Berkeley IGS/L.A. Times poll. In the June 2 primary,

[See **Voters,** A14]

# Hollywood sign's neighbors sick of crowds

BY IRIS KWOK

When Cynthia Cobb moved to Lake Hollywood in 2017, she and her husband were looking for a home with a view. They hit the jackpot, with dramatic vistas of the Hollywood sign.

Sure, a few tourists would sometimes stop by the nearby park to snap pictures of the sign, but she didn't mind. Traffic jams weren't a major concern, since most visitors to Lake Hollywood Park were locals taking their dogs out for walks.

But after the pandemic, the park got busier and busier, said Cobb, a Hollywood High School counselor. Crowds of tourists started blocking her driveway and ignoring parking signs. Worse, visitors smoke and discard cigarette butts on the ground, even on high-fire-risk days, she said.

On Monday, a group of Hollywood sign neighbors filed a legal complaint against the city of Los Angeles, Mayor Karen Bass and Councilmember Nithya Raman, whose district includes the neighborhood, demanding action.

They argue the city is responsible for nuisance con-

[See **Hollywood,** A11]




Superior Court of California

**TRAFFIC** is out of control and it's the city of L.A.'s fault, a group of residents says in a legal complaint.

## Younger teens seek to vote in SoCal

In Culver City, an effort aims to let those 16 and 17 cast ballots in certain elections. **CALIFORNIA, B1**

## Riley insists he's right fit for USC

As lackluster results add to pressure, coach says, "This is where I want to be." **SPORTS, B10**

## Subsidies sought on electric trucks

Ports of Long Beach and L.A. considering a joint incentive program for funding. **BUSINESS, A9**

**Weather**
High clouds.
L.A. Basin: 75/62. **B6**

**Markets** ..... **A11**
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